

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

Index No. 600371/2021

COMBINED DEMANDS

PLEASE TAKE NOTICE, that DEFENDANTS are required to provide the following pursuant to the provisions of the Civil Practice Law and Rules and the Rules of this Court, all replies shall be returnable at the office of John N. Cuomo, 11 Fern Drive, Commack, NY 11725, within thirty (30) days of the date of this demand, or as otherwise provided by any Court order herein:

1. **DEMAND FOR PHOTOGRAPHS, DRAWINGS and IMAGES IN ANY**
AND ALL FORMS

PLEASE TAKE NOTICE, that pursuant to C.P.L.R. Article 31 DEFENDANTS are required to produce any and all photographs, drawings or images in any and all forms, including, but not limited to films, videotapes, audiotapes, raw data, data cards, digital depictions or similar, concerning any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein; or

2. DEMAND FOR DISCOVERY AND INSPECTION OF ANY PARTY**STATEMENT**

PLEASE TAKE NOTICE, DEFENDANTS are required to produce, pursuant to CPLR 3101(e) and 3120, and permit me to discover, inspect, copy and photocopy, any statement in the possession, custody or control of any party allegedly made by or taken from any Plaintiff in this action, or from any agent, servant or employee of any such party.

3. DEMAND FOR THE NAMES AND ADDRESSES OF ALL WITNESSES

PLEASE TAKE NOTICE, that the undersigned demands, pursuant to CPLR 3101(a), that DEFENDANTS set forth in writing and under oath, within twenty (20) days of the service of this demand upon DEFENDANTS, the name and address of each person claimed by DEFENDANTS to be a witness to any occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleadings herein.

LEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

4. DEMAND FOR EXPERT WITNESS DISCLOSURE

PLEASE TAKE NOTICE, that pursuant to CPLR 3101(d), DEFENDANTS are required to provide the undersigned, within twenty (20) days, with the following:

(a) The name and address of each expert witness DEFENDANTS intend to call at the trial of this action.

(b) State the qualifications of each expert witness.

(c) State with specificity the subject matter upon which each expert is expected to testify at the time of trial.

(d) Provide the facts and opinion upon which each expert is expected to testify at the time of trial.

(e) Provide a summary of the grounds of each expert's opinion, and attach any data in support of each opinion and conclusion.

PLEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

5. NOTICE FOR DISCOVERY AND INSPECTION

PLEASE TAKE NOTICE, that Defendant/Third Party Plaintiff MARINE BULKHEADING, INC. demands Plaintiffs produce, the following for discovery and inspection within thirty (30) days all documents that concern, reference, pertain, relate, reflect upon in any way or scope any alleged occurrences, incidents, events, actions, place or places of same or as otherwise referenced in any pleading herein, this shall include, notes, memoranda, letters, texts, messages, phone logs, police reports, violations, summonses, permits,

licenses, sale tax permits/authorizations, sales tax payments, agreements, catering agreements, party or event equipment rental/purchases agreements, invoices or receipts, food/catering contracts, agreements, invoices or receipts, rental agreements, guest lists, employment agreements, boat slip/dockage rental agreements.

PLEASE TAKE FURTHER NOTICE, that the above demands are continuing demands. In the event any of the above items are obtained after service of this demand, they are to be furnished to this office.

Dated: Commack, New York
April 1, 2021

Yours etc.,



JOHN N. CUOMO
Attorney for Plaintiffs
11 Fern Drive
Commack, NY 11725
631-403-0515
631-326-9082 (fax)